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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 2

AN ACT PROPOSING AN AMENDMENT TO ARTICLE V OF THE DELAWARE CONSTITUTION RELATING TO VOTING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 1, Article V of the Delaware Constitution by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1. Time and manner of holding general ~~election~~ election; early, in-person voting.

~~Section 1.~~ (a) The general election shall be held biennially on the Tuesday next after the first Monday in the month of ~~November~~, November and shall be by ballot; but the General Assembly may by law prescribe the means, ~~methods~~ methods, and instruments of voting so as best to secure secrecy and the independence of the voter, preserve the freedom and purity of ~~elections~~ elections, and prevent fraud, ~~corruption~~ corruption, and intimidation thereof.

(b) Early, in-person voting must occur on 10 calendar days before the date established for each of the following elections, including on the Saturday and Sunday immediately before the following elections:

(1) The general election under subsection (a) of this Section.

(2) A primary election for an office to be decided at the general election under subsection (a) of this Section.

(3) A special election which fills a vacancy in the General Assembly.

SYNOPSIS

This Act is the first leg of a constitutional amendment to specifically authorize early, in-person voting for the general election, a primary election, and a special election filling a vacancy in the General Assembly.

This Act provides that early, in-person voting is to occur on 10 calendar days before the date of the general election, primary election, and special election, including the Saturday and Sunday immediately before the election.

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of the same changes after the next general election by the next General Assembly.

This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the Delaware Constitution.

Author: Senator Brown